

		While the arbitration agreement purports to cover any and all disputes between the parties regarding “[plaintiff’s] Vehicle,” the scope of an arbitration clause “turns on whether the ... claims are ‘rooted’ in the contractual relationship between the parties....” (<i>Ahern v. Asset Management Consultants, Inc.</i> (2022) 74 Cal.App.5th 675, 692.) In other words, to be arbitrable, the subject claims must have their roots in the relationship between the parties that was created by the contract containing the arbitration provision. (Id. at pp. 692-693; <i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) “[E]ven under a very broad arbitration provision, such as any controversy or claim arising out of or relating to this agreement, the subject claims must have their roots in the relationship between the parties which was created by the contract before they can be deemed to fall within the scope of the arbitration provision.” (<i>Rice v. Downs, supra</i>, 248 Cal.App.4th at p. 188.) The CSA governs the Defendant’s Connected Services technology. “These Terms and Conditions are the agreement between us regarding our provision of Connected Services to you (collectively referred to herein as ‘Agreement’ or ‘Connected Services Agreement’).” (Rao Decl., Ex. B.) The CSA defines Connected Services as the vehicle technology and service functions received as part of the enrollment in a Bluelink or Genesis Connected Services subscription, including but not limited to [¶] · Remote Service Activation [¶] · Stolen Vehicle Recovery [¶] · Enhanced Roadside Assistance [¶] · SOS/ACN [¶] · POI Send-to-Car and Destination Search [¶] · Digital Key 2.0 [¶] · Verizon Hotspot [¶] · Over the Air software updates[.]” (Rao Decl., Ex. B.) The Complaint alleges defects related to the Vehicle’s transmission. (Compl., ¶¶ 10, 45.) Thus, the Connected Services are not at issue in this case and Plaintiff’s claims do not arise out of the relationship created by the CSA. Therefore, the arbitration provision in the CSA does not cover the defects claimed in the Complaint and arbitration should not be compelled under the CSA. Accordingly, Defendant’s Motion is denied.
9	Santoro v. Smith 2023-01331783 Motion to Dismiss CMC OSC for FTA	Defendant Craig Thomas’s Motion to Dismiss is GRANTED. Defendant Craig Thomas, an individual and as Successor In Interest for Chris Santoro and Trustee of Carpe Vitam Trust, moves to dismiss this action pursuant to Code of Civil Procedure sections 581 and 583.410, et seq. Section 581, subdivision (f)(4), provides: “The court may dismiss the complaint as to that defendant when: . . . [¶] (4) After

	OSC re FTC with CRC 3.110 (b) OSC for FTC with CMC Statement	a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” Section 583.410, subdivision (a), provides: “The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” Section 583.420, subdivision (a), provides, in relevant part: (a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred: (1) Service is not made within two years after the action is commenced against the defendant. (2) The action is not brought to trial within the following times: (A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B). (B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice. (Code Civ. Proc., § 583.420, subd. (a)(1), (2).) Here, on 2/2/26, the court granted Defendant’s Motion to Strike the Complaint with 20 days leave to amend. To date, Plaintiff has not filed an amended Complaint. The deadline to do so has long since passed. Additionally, Plaintiff commenced this action on 3/7/23. Therefore, it has been pending for over three years and has not been brought to trial. Based on the foregoing, the motion is granted.
10	Santoro v. Thomas 2023-01313129 Motion to Dismiss CMC OSC for FTA OSC re FTC with CRC 3.110 (b)	Defendant Craig Thomas’s Motion to Dismiss is GRANTED. Defendant Craig Thomas, an individual and as Successor In Interest for Chris Santoro and Trustee of Carpe Vitam Trust, moves to dismiss this action pursuant to Code of Civil Procedure sections 581 and 583.410, et seq. Section 581, subdivision (f)(4), provides: “The court may dismiss the complaint as to that defendant when: . . . [¶] (4) After a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.”